



2026:AHC:147628-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 24510 of 2026

Spencer Retail Limited

.....Petitioner(s)

Versus

State Of Uttar Pradesh And 4 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Kushagra Srivastava,	Saumya Srivastava
Counsel for Respondent(s)	:	C.S.C., Krishna Agarawal,	Udit Chandra

Court No. - 1

HON'BLE AJIT KUMAR, J.

HON'BLE GARIMA PRASHAD, J.

1. Heard Sri Kushagra Srivastava, learned counsel for the petitioner, Shri Krishna Agarwal, learned counsel appearing for respondent No. 2 and Sri Udit Chandra, learned counsel appearing for the contesting respondent nos.3 & 4.

2. By means of the present petition filed under Article 226 of the Constitution of India, the petitioner has prayed for quashing of the order dated 14.11.2025 passed by the Consumer Grievance Redressal Forum rejecting the petitioner's application for waiving off the interest part of the demand notice.

3. It is contended on behalf of the petitioner that it is well within the powers of the Corporation to waive off the interest part of the demand, notice and, therefore, the Consumer Grievance Redressal Forum was not justified in rejecting the petitioner's request for waiver of the interest amount.

4. *Per contra*, Sri Udit Chandra, learned counsel appearing for the respondent- Corporation submits that the petitioner had earlier challenged the demand notice by filing Writ-C No. 18379 of 2025 before this Court. However, at the time of hearing, learned counsel for the petitioner confined the relief to invocation of the provisions contained in Clause 6.1(4) of the U.P. Electricity Supply Code, 2005, which provides for

payment of the outstanding dues in instalments.

5. Thus, according to Sri Chandra, once the petitioner had decided to pay the outstanding dues in instalments, he absolutely waived off his right to question the demand notice containing such amount to be paid as dues by the petitioner. It is further submitted that the operative portion of the order passed by the Consumer Grievance Redressal Forum cannot be faulted with, as the Forum has rightly recorded the order of this Court with the assertion of the petitioner that he had himself confined his prayer to invocation of the provisions contained under Clause 6.1(4) of the U.P. Electricity Supply Code, 2005.

6. Having heard learned counsel for the respective parties and upon perusal of the record, we find merit in the submissions advanced by learned counsel appearing for the respondent. For a better appreciation, the order dated 11.06.2025 is reproduced herein below:

"1. Even though learned counsel for the petitioner has assailed the bill dated 07.05.2025 on various grounds, she has confined her prayer to the benefits arising from Clause 6.14 of the UP Electricity Supply Code, 2005 and has prayed that if the application for installment is made by the petitioner, the same be sympathetically considered.

2. Sri Abhinav Jaiswal, holding brief of Sri Udit Chandra, learned counsel for the Electricity Department has not opposed the prayer so made. He states that if the petitioner deposits 10% of the entire amount, then the question of installments shall be considered and also the electricity shall be restored.

3. Under such circumstances, without further going into the merits of the case, we provide that if the petitioner deposits 10% of the entire amount demanded vis-a-vis bill dated 07.05.2025 within a period of ten days from today then the application of the petitioner, which would be filed under Section 6.14 of the Code, 2005, shall be considered in accordance with law.

4. As and when the petitioner deposits 10% of the entire amount, the electricity connection shall be restored within 24 hours of the deposit so

made.

5. The writ petition is, accordingly, disposed of. "

7. Upon perusal of the aforesaid order, we find in paragraph 1 of the order that it records an undertaking of the petitioner that petitioner was confining his prayer to avail the benefit as prescribed for under Clause 6.1(4) of the U.P. Electricity Supply Code, 2005 for the purposes of payment of the outstanding dues in easy instalments.

8. Thus, the petitioner stood satisfied with the bill dated 07.05.2025 generated by the Electricity Department. However, petitioner instead of availing the benefit of payment in instalments, filed a petition before the Consumer Grievance Redressal Forum raising objection to reduce the amount which included the interest. The petitioner, in fact, is seeking waiver of the interest part of the outstanding dues, for which the Electricity Department alone is the competent authority. However, the Consumer Grievance Redressal Forum has clearly reminded the petitioner in its order about the order passed by the Writ Court, wherein the petitioner had himself accepted the bill and only prayed for payment of the outstanding dues in instalments and thus, the petitioner was permitted to pay the outstanding dues in four equal instalments.

9. In view of the above, any order passed by us in interfering with the interest would count to reviewing the judgment already passed by this Court and that too with consent of the petitioner. Thus, we decline to grant indulgence.

10. Petition lacks merit and is accordingly **dismissed**.

(Garima Prashad,J.) (Ajit Kumar,J.)

July 20, 2026

Prachi